

House File 933

S-3131

1 Amend House File 933, as amended, passed, and reprinted by
2 the House, as follows:

3 1. By striking page 1, line 3, through page 4, line 9, and
4 inserting:

5 <Sec. _____. Section 135C.1, Code 2025, is amended by adding
6 the following new subsection:

7 NEW SUBSECTION. 16A. "*Pediatric palliative care patient*"
8 means an individual described by all of the following:

- 9 a. The individual is under twenty-one years of age.
10 b. The individual has been diagnosed with a chronic,
11 complex, life-threatening illness that is expected to shorten
12 the individual's life expectancy.
13 c. The individual is not expected to survive past twenty-one
14 years of age.

15 Sec. _____. Section 135C.2, Code 2025, is amended by adding
16 the following new subsection:

17 NEW SUBSECTION. 5A. The department shall establish a
18 special classification within the residential care facility
19 category for residential care facilities which have the primary
20 purpose of serving pediatric palliative care patients and
21 that only provides respite care services and the services of
22 a hospice program as defined in section 135J.1. A facility
23 within the special classification established pursuant to
24 this subsection shall be exempt from section 10A.713. The
25 department shall adopt rules pursuant to chapter 17A which
26 shall include but not be limited to all of the following:

- 27 a. A residential care facility within the special
28 classification established pursuant to this subsection may be
29 referred to as a pediatric palliative care center.
30 b. A licensed residential care facility within the special
31 classification established pursuant to this subsection shall
32 be eligible for funding available to hospice programs licensed
33 under chapter 135J, and licensed residential care facilities
34 that treat individuals with an illness or disability, including
35 but not limited to funding from the federal social services

1 block grant, the state supplementary assistance program, the
2 hospice respite benefit, home and community-based services
3 waivers, any funding source under chapter 249A, and any benefit
4 a nursing facility may be eligible for related to respite care
5 services.

6 Sec. _____. EMERGENCY RULES. The department of health and
7 human services may adopt emergency rules under section 17A.4,
8 subsection 3, and section 17A.5, subsection 2, paragraph "b",
9 to implement the provisions of this Act and the rules shall
10 be effective immediately upon filing unless a later date is
11 specified in the rules. Any rules adopted in accordance with
12 this section shall also be published as a notice of intended
13 action as provided in section 17A.4.

14 Sec. _____. EFFECTIVE DATE. This Act, being deemed of
15 immediate importance, takes effect upon enactment.>

16 2. Title page, line 1, after <centers> by inserting <, and
17 including effective date provisions>

18 3. By renumbering as necessary.

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